

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 04/21/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L23-01167
CASE NAME: BANK OF AMERICA N.A. VS. HEATHER OLEARY
*HEARING ON MOTION IN RE: VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF
STIPULATED SETTLEMENT
FILED BY: BANK OF AMERICA N.A.
TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at the address which Defendant listed on her Answer.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$8,760, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$5,295.

Costs are \$518.50.

Disposition

Plaintiff's Motion is **granted**. Judgment will be entered in the amount of \$7,521.08.

Plaintiff to file order on Motion, as well as submit Judgment.

2. 9:00 AM CASE NUMBER: L23-01483

CASE NAME: TD BANK USA, N.A., AS SUCCESSOR IN INTEREST TO TARGET NATIONAL BANK VS. KATHRYN STRATTAN

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE SETTLEMENT AND RESTORE TO ACTIVE STATUS**

FILED BY: TD BANK USA, N.A., AS SUCCESSOR IN INTEREST TO TARGET NATIONAL BANK

TENTATIVE RULING:

Plaintiff filed a motion to set aside notice of settlement.

On 8/1/23, Plaintiff filed a Notice of Conditional Settlement, indicating that, upon the completion of particular conditions, the matter would be dismissed, and that Plaintiff would file a request for dismissal no later than 8/12/24.

No Request for dismissal was ever filed. Thus, it was never dismissed.

Disposition

The case remains active.

Plaintiff's Motion is moot and it will be dropped.

3. 9:00 AM CASE NUMBER: L23-02492

CASE NAME: CAPITAL ONE, N.A. VS. KENDALL AUSTIN

***HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION**

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

However, mail service was completed at an address for the Defendant (Pleasant Hill) that is different than the address where Defendant was personally served with process (Concord). There are no other court filings reflected a Pleasant Hill address for Defendant.

Thus, service is not effective.

Disposition

Plaintiff's Motion is continued to 7/14/26, 9am.

Plaintiff to file Order and to serve Defendant with Notice of Motion and hearing.

4. 9:00 AM CASE NUMBER: L24-01151
CASE NAME: JPMORGAN CHASE BANK N.A. VS. CHRISTOPHER WALSH
***HEARING ON MOTION IN RE: NOTICE OF MOTION FOR SET ASIDE JUDGMENT**
FILED BY: JPMORGAN CHASE BANK N.A.
TENTATIVE RULING:

Plaintiff filed a Motion to set aside a default judgment and dismiss the case without prejudice.

The Motion is not noticed and is unopposed, but there is no prejudice to Defendant.

Disposition

Motion is **granted**.

Case is dismissed without prejudice.

Plaintiff shall prepare and submit the Order.

5. 9:00 AM CASE NUMBER: L24-03699
CASE NAME: MERCURY CASUALTY COMPANY VS. JAYLIN LOFTON
***HEARING ON MOTION FOR DISCOVERY TO DEEM REQ FOR ADMISSIONS ADMITTED AND OF**
NONAPPEARANCE
FILED BY: MERCURY CASUALTY COMPANY
TENTATIVE RULING:

Background

Plaintiff filed Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration and Memorandum.

Plaintiff also sought fees in the amount of \$400, for attorney's fees (2 hours at \$200/hr), and \$60 for

filing fees.

Plaintiff attached the particular facts at issue in their Exhibit A to their Declaration.

Plaintiff attached a proof of service, indicating email service to Defendant's attorney of record on the same date.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court **grants** Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Defendant is sanctioned in the amount of \$460.

Plaintiff shall prepare and submit the Order.

6. 9:00 AM CASE NUMBER: L24-03699

CASE NAME: MERCURY CASUALTY COMPANY VS. JAYLIN LOFTON

***HEARING ON MOTION FOR DISCOVERY MOTION TO DEEM REQ FOR ADMISSION ADMITTED/NON APPEARANCE FILED BY PLN ON 1/21/26**

FILED BY: MERCURY CASUALTY COMPANY

***TENTATIVE RULING**

Only one motion was scheduled for 4/21/26, and it was addressed above.

7. 9:00 AM CASE NUMBER: L24-06494

CASE NAME: ONEMAIN FINANCIAL GROUP, LLC VS. NADINE LOGAN

***HEARING ON MOTION IN RE: MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT 664.6**

FILED BY: ONEMAIN FINANCIAL GROUP, LLC

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant that was the same as that listed in the Complaint. Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed on the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$9,856.12, plus costs associated with any procedure to have the judgment enforced, less any credits for payments received.

The Defendant made payments of \$645.

Costs include \$365 for filing fees, and \$1,141.37, for attorney fees. A detailed description of these costs was included in Plaintiff's Declaration, filed with this Motion.

Disposition

Plaintiff's Motion is **granted**. Judgment will be entered in the amount of \$10,717.49.

Plaintiff to file order on Motion, as well as submit Judgment.

8. 9:00 AM CASE NUMBER: L24-11084

CASE NAME: WELLS FARGO BANK, N.A. VS. ZENAIDA SMITH

***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS AND OF NONAPPEARANCE**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Judgment on the Pleadings. The motion was timely served by mail on Defendant. The Motion is unopposed.

On 11/25/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All requests for admission, provided in the declaration filed 9/15/25, were deemed to be true by the court.

The court takes judicial notice of the Complaint, the Order on the Motion to deem matters admitted, as well as the declaration filed by the Plaintiff on 9/15/25.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges Breach of Contract as sole cause of action, based on the allegation that Defendant became indebted in the amount of \$14,138.01, on a credit card account.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the "RFAs") served on Defendant which was granted by the Court. See Order entered 11/25/25 (the "Deemed Admitted Order"). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$14,138.01.

Plaintiff also filed a memo of costs and attorney fees, in addition to a declaration of attorney fees, all totaling \$1,375.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 ("Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.").

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is **granted**, including the request for costs and fees.
2. Plaintiff shall prepare and submit the order.

3. Court Trial on 7/15/26 will be **vacated**.

9. 9:00 AM CASE NUMBER: L25-01908
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. VERNELL MCCALL
HEARING IN RE: MTC RESPONSES TO REQ. FOR ADMISSIONS, INTERROGATORIES, AND REQ. FOR
PROD OF DOCS

FILED BY:

***TENTATIVE RULING**

Background

Defendant has filed a Motion To Compel various requests for discovery.

The Motion is unopposed, yet there is no proof that Defendant has provided any notice to Plaintiff.

Disposition

This Motion will be **continued** to 7/14/26, 9 a.m.

Defendant to serve Plaintiff with notice of Motion and date of Motion.

Defendant shall prepare and submit the Order.

10. 9:00 AM CASE NUMBER: L25-03167
CASE NAME: WELLS FARGO BANK, NA VS. CAROL CERVANTES
*HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON THE PLEADINGS FILED BY PLN ON
1/28/26

FILED BY: WELLS FARGO BANK, NA

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Judgment on the Pleadings. The motion was timely served by mail on Defendant. The Motion is unopposed.

On 10/28/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All requests for admission, provided in the declaration filed 7/25/25, except for number 8, were deemed to be true by the court.

The court takes judicial notice of the Complaint, the Order on the Motion to deem matters admitted,

as well as the declaration filed by the Plaintiff on 7/25/25.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff’s Complaint alleges Breach of Contract as the two causes of action, based on the allegation that Defendant became indebted in the amount of \$21,346.38, on a credit card account.

Defendant’s Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the “RFAs”) served on Defendant which was granted by the Court. See Order entered 11/12/25 (the “Deemed Admitted Order”). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$21,346.38.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is **granted**.
2. Plaintiff shall prepare and submit the Order.
3. Court date of 6/18/26 is **vacated**.

11. 9:00 AM CASE NUMBER: L25-05041
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. TRINA RAMSEY
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT AND DEFAULT JUDGMENT
FILED BY:
TENTATIVE RULING:

Background

Defendant filed a Motion, on 1/22/26, to set aside the default judgment, which was filed on 10/31/25. Request for Entry of Default was filed on 8/29/25. The Complaint in the matter was filed on 5/5/25.

The Motion was properly noticed, and is unopposed.

Defendant also filed a Declaration with this Motion, which contained a form request, by the Defendant, for arbitration, purportedly made in June, 2025. The Declaration also contained the purported agreement between the parties, which allowed for arbitration if requested by one of the parties, and, once requested, rendered arbitration as the sole mechanism by which to adjudicate any disputes.

Analysis

Defendant seeks relief under Section 473(b) of the CCP, which provides authority to the court to set aside a judgment in cases where a defendant acts or fails to act out of mistake, inadvertence, surprise or excusable neglect. The statute requires that the motion be made no later than 6 months from the time the judgment was taken.

In the instant matter, Defendant timely moved to set aside the Judgment. Moreover, Defendant had more than sufficient reason for failing to file an Answer to the Complaint. Approximately one month after the Complaint, Defendant triggered the arbitration process, according to the terms of the agreement between the parties. By those terms, Defendant reasonably expected that, at minimum, any court process already proceeding would be suspended until the completion of arbitration.

That she was surprised to learn that Plaintiff had proceeded with litigation in court, and that she was required to respond to the court pleadings of the Plaintiff, is more than justified.

Disposition

Defendant's Motion is **granted**.

The litigation will be stayed until resolution of the arbitration process.

Defendant shall prepare and submit the Order.

12. 9:00 AM CASE NUMBER: L25-05839
CASE NAME: MARINER FINANCE, LLC VS. LORETTA ROBERTSON
***HEARING ON MOTION FOR DISCOVERY**
FILED BY: MARINER FINANCE, LLC
TENTATIVE RULING:

Background

Plaintiff filed Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration and Memorandum, all filed on 1/21/26.

Plaintiff attached the particular facts at issue in their Exhibit A to their Declaration, entitled 'Requests For Admissions, Set No. ONE.'

Plaintiff attached a proof of service, indicating email service to Defendant's attorney of record on the same date.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff shall prepare and submit the Order.

13. 9:00 AM CASE NUMBER: L25-09232

CASE NAME: CAPITAL ONE N.A. VS. RACHEL RUMSEY

***HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION
FILED BY: CAPITAL ONE N.A.**

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the attorney of Defendant.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$3,323.11, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$0.

Costs are \$358.61, according to a memo filed by the Plaintiff.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$3,681.72.

Plaintiff shall prepare and submit an Order and Judgment.

14. 9:00 AM CASE NUMBER: L25-12915
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. JEREMY
***HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS**
FILED BY: JEREMY, JEREMY
TENTATIVE RULING:

Background

Defendant filed a Motion to Quash the Summons on 1/26/26, arguing that service of process was invalid. Specifically, Defendant claims that he was never personally served.

Plaintiff opposes the Motion, arguing that personal service was effected by a registered process server, as reflected in the filed Proof of Service. Plaintiff also seems to allude to substitute service in their response, but the Proof of Service reflects personal service only, and there is no evidence that Plaintiff subsequently mailed process documents to the Defendant.

Analysis

A defendant can move to quash service of the summons if service of the service is not valid. *Code of Civil Procedure Section 418.10(a)(1)*. A defendant's actual knowledge of the action does not dispense with the statutory requirement of service of the summons. *Kappel v. Bartlett* (1988) 200 CA3d 1457, 1466.

When a defendant moves to quash the summons on the basis of invalid service, “[T]he burden is on the plaintiff to prove ... the fact requisite to an effective service.” *Summers v. McClanahan* (2006) 140 CA4th 403, 413.

However, service that is done by a registered process server raises a presumption of valid service, shifting the burden to the Defendant. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795.

In the instant matter, even assuming for the sake of argument that personal service did not occur, the Defendant appears to concede that he, in fact, received copies of the Summons and Complaint, when he wrote, in his Motion, “The papers were later found left unattended on the front porch,” and he attached apparent photos of the process server leaving the documents at his residence.

This suggests to the court that, by a preponderance of the evidence, Defendant has been served with process.

The timing of this service, however, is a bit unclear.

The court will grant leave to file his Answer within 10 days of this Order.

Disposition

Defendant’s Motion is **denied**.

However, Defendant to file Answer within 10 days of this Order.

Plaintiff shall prepare and submit the Order.

15. 9:00 AM CASE NUMBER: L25-14576
CASE NAME: U.S. BANK NATIONAL ASSOCIATION VS. YANA MAYFIELD
HEARING ON DEMURRER TO:
FILED BY:
TENTATIVE RULING:

Background

Defendant filed a Demurrer to the Complaint, which alleges Breach of Contract as the sole cause of action, and also moved to strike the request, in the Complaint, for attorney fees.

The Complaint alleges damages of \$17,394.37, resulting from Defendant’s failure to repay Plaintiff for money that Plaintiff lent to Defendant, and also seeks the recovery of court costs.

The Complaint contains the copy of the purported written agreement.

Analysis

The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.

A defendant may raise the issue of standing in a Demurrer when the complaint does not state facts sufficient to constitute a cause of action by the particular plaintiff. *CCP 430.10(b) and (e)*; *CCP 430.30(a)*; and *Mercury Interactive Corp. v. Klein* (2007) 158 CA4th 60, 103-104.

In a limited civil matter, "Motions to strike are allowed only on the ground that the damages or relief sought are not supported by the allegations of the complaint." *CCP 92(d)*.

Cause of Action for Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821. The formation of a contract requires that the contract terms were clear enough that the parties could understand what each was required to do. *Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 811.

In the instant matter, the Complaint sufficiently alleges the existence of a written agreement between the parties, with definite terms. The writing and terms are reflected in the attachment to the Complaint, which indicate, in summary, that the agreement was executed when Defendant used the credit account, and that the terms involved the lending of money by the Plaintiff, the obligation of the Defendant to repay the money which Plaintiff lent and the collection of court costs. Further, the Complaint shows that Plaintiff performed their end of the bargain, yet Defendant failed to do so when Defendant did not pay. Moreover, Plaintiff suffered damages of approximately \$17,300.

Disposition

Defendant's Demurrer is **overruled**.

To the extent Defendant has moved to strike Plaintiff's request for court costs, that request is denied.

Plaintiff shall prepare and submit the Order.